EG United States, Canada QUICKTAKE: Washington revives Section 338 to drive stalled USMCA talks with Canada

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【要点】

・米国トランプ政権は7月20日、カナダ製品約200億ドル分に対して50%の追加関税（セクション338）を発動し、自動車・アルコール飲料・酪農製品の差別的扱いを理由に挙げた。関税は30日後に発効する。

・セクション338は過去に使用されたことのない通商法で、米国商取引に対する差別的慣行を理由に最大50%の関税を課す大統領権限であり、今回の発動は同法の初めての近代的活用である。

・この措置は主に交渉カードであり、停滞しているUSMCA（米国メキシコカナダ協定）交渉にカナダへの圧力を強める目的と考えられる。30日の猶予期間はカナダが譲歩する機会を提供している。

・カナダが交渉に応じるには、米国のアルコール飲料アクセス復活、乳製品枠の修正、米国固有の自動車措置の停止、およびUSMCA交渉開始が求められる。

・セクション338の使用は今後、差別的扱いを理由に他国との交渉が停滞している場合の通商紛争手段として定例化する可能性がある。

【メール原文】

United States, Canada QuickTake

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What happened:

On 20 July, the Trump administration imposed 50% Section 338 duties on three lists of Canadian products worth about $20 billion, citing alleged Canadian discrimination against US commerce tied to autos, alcoholic beverages, and dairy. The tariffs take effect in 30 days.

Our take:

The bigger story is the White House’s revival of Section 338, a never-used trade statute designed to allow the President to impose up to 50% duties on imports from countries that discriminate against the US commerce, to induce them to remove those barriers.

The tariffs cover a range of manufactured and consumer goods, from plastics and machinery to furniture, wood products and alcoholic beverages. The relatively narrow product lists and 30-day implementation window suggest this is primarily a negotiating tool rather than a broad trade escalation. More importantly, it marks the first modern use of Section 338, transforming what had long been a dormant statutory authority into another credible unilateral trade instrument alongside Sections 232 and 301. By using the authority in a unilateral manner without a pre-existing public investigation, the White House is signaling it views Section 338 as a tool to restore some of the trade leverage it lost following the overturning of IEEPA by the courts.

This increases pressure on stalled USMCA negotiations. By extending Section 338 to USMCA-compliant goods, the administration is reducing one of Canada's key buffers against escalating trade tensions. That raises the economic cost of allowing negotiations to remain stalled while preserving a 30-day window for talks before tariffs take effect. Rather than signaling the end of negotiations, the structure of the measures is consistent with an effort to increase leverage and inject greater urgency into bilateral USMCA discussions.

The 30-day window likely allows Canada to make concessions to avoid tariff implementation. A credible off-ramp would involve restoring US alcohol access, modifying dairy quota allocation and suspending the US-specific auto measures, coupled with the launch of formal USMCA negotiations. Signaling of negotiations and cooperation from Ottawa could justify the US delaying or narrowing the tariffs. Full removal of the Section 338 threat would probably require concrete implementation.

The implications extend beyond Canada. The targeted nature of the measures suggests the administration is setting up a precedent for using Section 338 against countries accused of discriminatory treatment of US commerce, particularly where bilateral negotiations have stalled. The key watchpoints are whether Canada uses the 30-day window to re-engage on USMCA negotiations and whether Section 338 becomes a recurring tool in future US trade disputes.

There is significant legal uncertainty. The text of the statute appears to allow for the tariffs, but its use is entirely untested across the century of its existence. Legal proceedings are likely, and will revolve around both questions of process – such as the rule of USITC in formally identifying trade discrimination – and the "major questions doctrine" that conservative Supreme Court justices cited in striking down IEEPA tariffs.

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Explanation of Political Trajectories (ie, “Trajectories”)

Eurasia Group's (EG) Political Trajectories are indicators of the net impact of political factors on the macro business environment in a country over specific timeframes. For each country, two Trajectories are provided, a short-term (6 months) and a long term assessment (24 months). Trajectories are assigned by Eurasia Group’s country analysts through a structured qualitative process. Each Trajectory represents a net assessment, indicating how political changes in a country impact the macro business environment, defined as the economic and investment climate in the country. Once initiated, Trajectories are updated both periodically and as events warrant. Trajectories may be suspended from time to time if there is no active analyst opinion or analyst coverage, but the opinion or coverage is expected to resume. Trajectories can be:

Positive: Political factors in the country are anticipated to have a positive impact on the macro business environment

Neutral: Political factors in the country are anticipated to have a neutral or negligible impact on the macro business environment

Negative: Political factors in the country are anticipated to have a negative impact on the macro business environment